

IN THE SENATE

SENATE JOINT MEMORIAL NO. 109

BY STATE AFFAIRS COMMITTEE

A JOINT MEMORIAL

TO THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES IN CONGRESS ASSEMBLED AND TO THE CONGRESSIONAL DELEGATION REPRESENTING THE STATE OF IDAHO IN THE CONGRESS OF THE UNITED STATES.

We, your Memorialists, the Senate and the House of Representatives of the State of Idaho assembled in the Second Regular Session of the Sixty-eighth Idaho Legislature, do hereby respectfully represent that:

WHEREAS, Section 2, Article I of the Constitution of the State of Idaho declares that "All political power is inherent in the people. Government is instituted for their equal protection and benefit, and they have the right to alter, reform or abolish the same whenever they may deem it necessary"; and

WHEREAS, the Tenth Amendment to the Constitution of the United States affirms that any powers not delegated to the federal government are reserved to the states or the people, reinforcing the principle of federalism; and

WHEREAS, the states have long served as laboratories of a republic, uniquely positioned to establish election laws and policies that reflect the needs, values, and interests of their citizens; and

WHEREAS, a robust system of state-led election governance strengthens self-government, promotes accountability, and preserves the integrity of the electoral process by ensuring that the people of each state determine how best to protect their representation, secure their ballots, and maintain participation in democratic processes; and

WHEREAS, the framers of the Constitution of the United States recognized the primary role of the states in structuring election laws and mechanisms, understanding that a one-size-fits-all federal approach is neither necessary nor desirable; and

WHEREAS, the people of Idaho have a vested interest in ensuring that their electoral processes remain transparent, secure, responsive to Idaho priorities, and free from disproportionate federal influence or mandates imposed by entities or individuals that may not reflect the will or security needs of Idaho voters; and

WHEREAS, the principle of self-governance requires that states retain the ability to establish laws governing elections, including the influence of money and outside forces, consistent with their unique circumstances and policy considerations; and

WHEREAS, the constitutional amendment process provides an avenue for reaffirming the role of the states in overseeing elections and ensuring that their authority in this realm is preserved.

NOW, THEREFORE, BE IT RESOLVED by the members of the Second Regular Session of the Sixty-eighth Idaho Legislature, the Senate and the House of Representatives concurring therein, that the Legislature hereby calls upon the members representing Idaho in the Congress of the United States to actively uphold the principles of federalism and to be proponents of ap-

1 appropriate action, including, if necessary, championing a constitutional
2 amendment that affirms the primary role and the authority of states to govern
3 their election processes and establishes the ability of the states to enact
4 policies regarding campaign finance, election security and transparency,
5 and outside influence in a manner that is consistent with established con-
6 stitutional principles and that prioritizes state sovereignty.

7 BE IT FURTHER RESOLVED that the Secretary of the Senate be, and she is
8 hereby authorized and directed to forward a copy of this Memorial to the
9 President of the Senate and the Speaker of the House of Representatives of
10 Congress and to the congressional delegation representing the State of Idaho
11 in the Congress of the United States.